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FIFTH AMENDMENT
TO ENTERPRISE SERVICE AGREEMENT

THIS AMENDMENT ("Fifth Amendment"), dated this 16th day of December, **2020**, is by and between:

> **THE CITY OF PEMBROKE PINES,** a municipal corporation organized and operating under the laws of the State of Florida, with an address of **601 City Center Way, Pembroke Pines, FL 33025**, hereinafter referred to as "Affiliate",
>
> and
>
> **VIGILANT SOLUTIONS, LLC,** a limited liability company, registered in the State of Delaware, authorized to do business in the State of Florida, and with a business address of **1152 Stealth Street, Livermore, CA 94551,** hereinafter referred to as "Vigilant". "Affiliate" and "Vigilant" may hereafter be collectively referred to as the "Parties".

WHEREAS, the City of Pembroke Pines Police Department field tested mobile License Plate Reader (LPR) systems and chose to utilize the Vigilant LPR system as it out-performs the other systems;

WHEREAS, Vigilant utilizes a tiered reseller channel for distribution of its Automated License Plate Reader (ALPR) product line;

WHEREAS, Vetted Security Solutions is currently Vigilant's only certified reseller in the South Florida area;

WHEREAS, on **September 16, 2015** the Affiliate approved the sole source purchase of the Vigilant Intelligence-Led Policing (ILP) Package with stationary License Plate Reader (LPR) hardware and two (2) compatible mobile LPR trailers from Vetted Security Solutions;

WHEREAS, on November 16, 2015 the Affiliate and Vigilant entered into the Enterprise Service Agreement ("Original Agreement") for an initial **one (1) year** period commencing on **January 16, 2016** and terminating on **January 16, 2017**;

WHEREAS, the Original Agreement authorized the renewal of the Agreement at the expiration of the initial term for additional **one (1) year** periods;

WHEREAS, on **May 10, 2016**, the Parties entered into the First Amendment to the Original Agreement to include the additional purchase of the Vigilant Intelligence-Led Policing (ILP) Package with stationary License Plate Reader (LPR) hardware, three (3) compatible mobile

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PLR trailers, and one (1) mobile LPR 3-Camera system from Vetted Security Solutions, as approved by the Affiliate on **May 4, 2016**, to revise the compensation amount, and to extend the term of the Agreement for an additional year, terminating on **January 16, 2018**;

WHEREAS, on February 21, 2017, the Parties entered into the Second Amendment to the Original Agreement, as amended, to include the additional purchase of the Vigilant Intelligence-Led Policing (ILP) Package with stationary License Plate Reader (LPR) hardware, two compatible mobile LPR trailers, one mobile LPR 2-Camera system, and one mobility kit from Vetted Security Solutions as approved by the Affiliate on **January 11, 2017**, and to extend the term of the Agreement for an additional one (1) year period, terminating on **January 16, 2019**;

WHEREAS, on **June 26, 2018**, the Parties entered into the Third Amendment to the Original Agreement, as amended, to include the additional purchase of the Vigilant Intelligence-Led Policing (ILP) Package with stationary License Plate Reader (LPR) hardware, two compatible mobile LPR trailers, and two mobility kits from Vetted Security Solutions as approved by the Affiliate on **June 6, 2018,** and to revise and supplemented the terms contained in the Original Agreement, as amendmed, and to extend the term of the Agreement for an additional **one (1) year** period terminating on **January 16, 2020**;

WHEREAS, on **June 17, 2020** *nunc pro tunc* **January 16, 2020**, the Parties entered into the Fourth Amendment to the Original Agreement, as amended, to include the additional purchase of one (1) Vigilant Intelligence-Led Policing (ILP) Package with mobile License Plate Reader (LPR) hardware, with trailer retrofit kit, and two (2) LPR Mobiles Systems from Vetted Security Solutions as approved by the Affiliate on **June 17, 2020** and to extend the term of the Agreement for an additional **one (1) year** terminating on **January 16, 2021**; and,

WHEREAS, to date the Parties have been satisfied with the performance and execution of the Original Agreement, as amended, and desire to renew the term of Original Agreement, as amended, for an additional **one (1) year period** as set forth in this Fifth Amendment to Original Agreement.

WITNESSETH

NOW, THEREFORE, for and in consideration of the sum of the mutual covenants and other good and valuable consideration, the receipt of which are hereby acknowledged, the Parties hereto agree as set forth below:

SECTION 1. The recitations set forth in the above "WHEREAS" clauses are true and correct and incorporated herein by this reference.

SECTION 2. Any language contained in this Fifth Amendment, or any subsequent amendment, which is in ~~strikethrough type~~ shall be deletions from the terms of the Original Agreement and language in <u>underlined type</u> shall be additions to the terms of the Original Agreement.

SECTION 3. Section III (A) of the Original Agreement, as amended, entitled "<u>Term</u>", is hereby revised and amended as set forth below:

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A. Term. The term of this Agreement shall expire on **January 16, 2021~~1~~2**, unless earlier terminated as provided herein. Sixty (60) days prior to the expiration of the Term and each subsequent Service Period, Vigilant will provide Affiliate with an invoice for the Service Fee due for the subsequent twelve (12) month period (each such period, a "Service Period"). This Agreement and the Enterprise License granted under this Agreement will be extended for a Service Period upon Affiliate's payment of that Service Period's Service Fee, which is due 30 days prior to the expiration of the existing Service Period. Pursuant to Section X below, Affiliate may also pay in advance for more than one Service Period.

SECTION 4. Section XI (L) of the Original Agreement, as amended, entitled "Notices; Authorized Representatives; Technical Support Agents", is hereby revised and amended as set forth below:

L. Notices; Authorized Representatives; Technical Support Agents. All notices, requests, demands, or other communications required or permitted to be given hereunder must be in writing and must be addressed to the parties at their respective addresses set forth below and shall be deemed to have been duly given when (a) delivered in person; (b) sent by facsimile transmission indicating receipt at the facsimile number where sent; (c) one (1) business day after being deposited with a reputable overnight air courier service; or (d) three (3) business days after being deposited with the United States Postal Service, for delivery by certified or registered mail, postage pre-paid and return receipt requested. All notices and communications regarding default or termination of this Agreement shall be delivered by hand or sent by certified mail, postage pre-paid and return receipt requested. Either party may from time to time change the notice address set forth below by delivering 30 days advance notice to the other party in accordance with this section setting forth the new address and the date on which it will become effective.

Vigilant Solutions, Inc. Attn.: Sales Administration ~~2021 Las Positas Court—Suite # 101~~1152 Stealth Street, Livermore, CA 94551	**Affiliate:** City of Pembroke Pines Attn.: Charles F. Dodge, City Manager ~~10100 Pines Boulevard~~601 City Center Way, 4th Floor Pembroke Pines, FL 33025	**Copy To:** Goren, Cherof, Doody & Ezrol, P.A. 3099 East Commercial Boulevard, Suite #200 Fort Lauderdale, FL 33308

SECTION 5. In the event of any conflict or ambiguity by and between the terms and provisions of this Fifth Amendment, the Fourth Amendment, the Third Amendment, the Second Amendment, the First Amendment, and the Original Agreement, the terms and provisions of this Fifth Amendment shall control to the extent of any such conflict or ambiguity.

SECTION 6. The Parties agree that in all other respects the Original Agreement, as amended by the First Amendment, the Second Amendment, the Third Amendment, the Fourth Amendment and this Fifth Amendment, shall remain in full force and effect, except as specifically modified herein.

SECTION 7. Each exhibit referred to in the Original Agreement, as amended, except as

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repealed herein, forms an essential part of this Fifth Amendment. The exhibits, if not physically attached, should be treated as part of this Fifth Amendment and are incorporated herein by reference.

SECTION 8. Each person signing this Fifth Amendment on behalf of either Party individually warrants that he or she has full legal power to execute this Fifth Amendment on behalf of the Party for whom he or she is signing, and to bind and obligate such Party with respect to all provisions contained in this Fifth Amendment.

SECTION 9. This Fifth Amendment may be executed by hand or electronically in multiple originals or counterparts, each of which shall be deemed to be an original and together shall constitute one and the same agreement. Execution and delivery of this Fifth Amendment by the Parties shall be legally binding, valid and effective upon delivery of the executed documents to the other Party through facsimile transmission, email, or other electronic delivery.

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IN WITNESS OF THE FOREGOING, the Parties have set their hands and seals the day and year first written above.

ATTEST:

DocuSigned by:
Marlene Graham
E858EEE04EEF4F3...

MARLENE D. GRAHAM,
CITY CLERK

APPROVED AS TO FORM

DocuSigned by:
Danielle Schwabe
013E807C191D4FF...

Print Name: Danielle Schwabe
OFFICE OF THE CITY ATTORNEY

Affiliate:

CITY OF PEMBROKE PINES

DocuSigned by:
BY: Charles F. Dodge
7563D7C5B031407...

CHARLES F. DODGE
CITY MANAGER

Vigilant:

VIGILANT SOLUTIONS, LLC

Signed By: _____

Print Name: Bill Quinlan

Title: Vice President Sales Operations